



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 28, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103446 regarding Police Officer Jonathan Niles, Tax No. 948109 (DADS No. 2022-27229) and Police Officer Arnold Murphy, Tax No. 935374 (DADS No. 2022-27228)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officers Murphy and Niles do not warrant a disciplinary penalty. In this matter, Police Officer Niles was alleged to have been discourteous to the complainant by physically removing a police report from the complainant's hands and placing the report in his pocket. Additionally, Police Officer Niles and Murphy were alleged to have improperly failed to offer a business card to the complainant.

Police Officer Niles requested to review the report after it was apparent that the complainant was preparing the report inaccurately and the complainant had repeatedly refused to give it to Police Officer Niles. The complainant then attempted to wrestle the report back from Police Officer Niles who then quickly folded it into his pocket. Immediately afterwards Police Officer Niles requested a supervisor to respond.

It should be noted that the CCRB investigator did not substantiate the discourtesy allegation against Police Officer Niles and, in fact, found that the discourtesy allegation should be closed as exonerated. Notably, the CCRB Investigator stated in the CCRB Investigative Recommendation that Police Officer Niles, after repeated requests to see the report, was serving a law enforcement purpose and was responsible for ensuring the report was accurately prepared. While the CCRB

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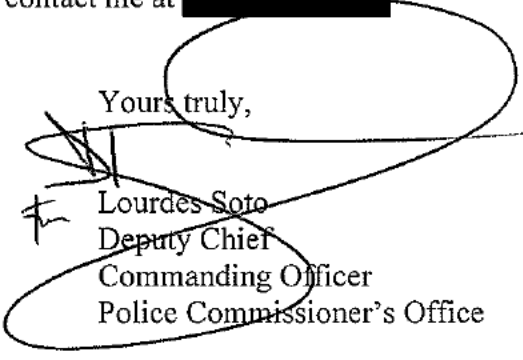
Board overruled the investigator and substantiated the discourtesy allegation, the CCRB Board did not provide any reasoning for their finding. Thus, absent further context, no disciplinary action will be taken against Police Officer Niles for the alleged discourtesy.

The CCRB also substantiated the allegation of failing to provide business cards against both Police Officer Niles and Police Officer Murphy. In the instant matter, Police Officers Niles and Murphy were conducting a preliminary investigation and were interviewing the complainant who stated that she was the victim of a burglary. Police Officer Miles and Murphy were compliant with Administrative Guide 304-11 (Compliance with New York City Right to Know Act/Right to Know Business Card), which does not require an officer to offer a business card when taking a complaint report from a victim during a preliminary investigation. Thus, Police Officers Murphy and Niles will receive no disciplinary action for failing to offer a business card.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Niles will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department/Discourtesy Act). Additionally, Police Officer Niles and Police Officer Murphy will receive no disciplinary action for the alleged violation of Administrative Guide 304-11 (Compliance with New York City Right to Know Act/Right to Know Business Card).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office